

Durga Singh vs State (2023/Rjjd/001942) on 23 January, 2023

Author: Pushpendra Singh Bhati

Bench: Pushpendra Singh Bhati

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Criminal Misc(Pet.) No. 792/2016

Sanjay

----Petitioner

Versus

State And Ors.

----Respondent

Connected With

S.B. Criminal Misc(Pet.) No. 1036/2012

Bhoop Singh

----Petitioner

Versus

State

----Respondent

S.B. Criminal Misc(Pet.) No. 789/2014

Rajesh Kumar @ Raju Sangwa

----Petitioner

Versus

State And Anr.

----Respondent

S.B. Criminal Misc(Pet.) No. 2766/2014

Radhey Shyam

----Petitioner

Versus

State And Ors.

----Respondent

S.B. Criminal Writ Petition No. 41/2015

Dharma Ram

----Petitioner

Versus

State And Ors.

----Respondent

S.B. Criminal Misc(Pet.) No. 2292/2016

Bajrang Nath

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[CRLMP-792/2016]

----Petitioner

Versus

State And Ors.

----Respondent

S.B. Criminal Misc(Pet.) No. 3834/2016

Dinesh Bhambhani S/o Shri Kishanchand Bhambhani, R/o B-111,
Sri Ram Nagar, Behind P.f. Office, Chopasni Housing Board,
Jodhpur.

----Petitioner

Versus

1. State Of Rajasthan.
2. The Police Commissioner, Jodhpur.
3. Deputy Commissioner Of Police, Jodhpur West, Jodhpur.

----Respondents

S.B. Criminal Misc(Pet.) No. 698/2017

Durga Singh Shekhawat S/o Shri Karni Singh Shekhawat,
Resident Of Binadeshwar House, Infront Of City School, Modern
Market, Bikaner.

----Petitioner

Versus

State Of Rajasthan Through Station House Officer, Police Station
Kotgate, Bikaner.

----Respondent

S.B. Criminal Misc(Pet.) No. 711/2017

Bhagwan Singh Shekhawat S/o Shri Karni Singh Shekhawat,
Resident Of Binadeshwar House, Infront Of City School, Modern
Market, Bikaner.

----Petitioner

Versus

State Of Rajasthan Through Station House Officer, Police Station
Kotgate, Bikaner.

----Respondent

S.B. Criminal Misc(Pet.) No. 3303/2017

Omprakash @ Colonel S/o Shri Nanu Ram Godara, Bhompura,
Post Sandwa, Tehsil Bidasar, District Churu.

----Petitioner

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[CRLMP-792/2016]

Versus

1. State Of Rajasthan Through Superintendent Of Police,
Churu
2. Sho, Ps Sandwa, Churu

----Respondents

S.B. Criminal Misc(Pet.) No. 3927/2017

Virendra Singh @ Poonam Singh @ Fauji S/o Shri Ratan Singh,
R/o Village Mithri, P.s. Rajgarh, Distt. Churu, Presently R/o- Near
Sent Anthony School, Kola Magri, Titardi, Near Girja Vyas Petrol
Pump, P.s. Hiran Magri, Distt. Udaipur.

----Petitioner

Versus

1. The State Of Rajasthan
2. Superintendent Of Police, Udaipur.
3. Station House Officer, P.s. Hiran Magri, Distt. Udaipur.

----Respondents

S.B. Criminal Misc(Pet.) No. 4016/2017
Ummed Singh S/o Sh. Lal Singh, By Caste Rajput, Resident Of
V.p.o. Khara, Police Station Jamsar, District Bikaner Raj.

----Petitioner

Versus

1. State Of Rajasthan Through The Superintendent Of
Police, Bikaner.
2. Station House Officer, P.s. Jamsar, District Bikaner.

----Respondents

S.B. Criminal Misc(Pet.) No. 4022/2017
Radhey Shyam Son Of Hanuman Singh, By Caste Rajpurohit,
Resident Of Village Jhabra, Tehsil Bhaniyana, District Jaisalmer.

----Petitioner

Versus

1. The State Of Rajasthan
2. Superintendent Of Police, Jaisalmer.
3. Sho Of Falsund Police Station, District Jaisalmer.

----Respondents

S.B. Criminal Misc(Pet.) No. 4581/2018

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[CRLMP-792/2016]

Manish Arora S/o Shri Ram Chandra Arora, aged around 35
years, By Cast Arora R/o IV D 32 Jai Narain Vyas Colony, P.S.
Jai Narain Vyas Colony, Bikaner (Raj).

----Petitioner

Versus

1. The State Of Rajasthan
2. The Superintendent Of Police, Bikaner.
3. I.G. Bikaner, I.G. Range, Biaker.

----Respondents

For Petitioner(s)	:	Mr. RS Choudhary. Mr. Vikas Bijarnia. Mr. Vipin Makkad. Mr. Chandra Mohan Sharma. Mr. Shreyash Ramdev. Mr. Amardeep Lamba. Mr. Mohd. Rasheed. Mr. Sumer Singh Rathore. Mr. Pravin Vyas. Mr. Hardik Gautam.
For Respondent(s)	:	Mr. MA Siddiqui, GA-cum-AAG assisted by Mr. AR Malkani.

HON'BLE DR. JUSTICE PUSHPENDRA SINGH BHATI

Judgment Reserved on 11/01/2023 Pronounced on 23/01/2023

1. Since the bone of contention in the present case is common, namely, the order(s) of the concerned Superintendent of Police, regarding opening of the History-sheet/entry of the name in the surveillance register, alongwith the entire proceedings pursuant thereto, against the present petitioners, therefore, this Court deems it appropriate to set out the prayer clauses and the factual matrix of the cases individually, as pleaded in the respective petition, as under:

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[CRLMP-792/20

1.1 S.B. Criminal Misc(Pet.) No. 792/2016 has

preferred claiming the following reliefs:

"It is, therefore, respectfully prayed that this Misc. Petition may kindly be allowed and the name the petitioner be ordered to be deleted from the surveillance register so been maintained by the respondents in accordance with order Dt. 11.8.2015 passed by the Superintendent of Police, Sri Ganganganar. Any other appropriate relief which, this Hon'ble Court deems fit and proper may kindly be passed in favour of the petitioner."

1.1.1 The details of cases registered against the petitioner in this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	258/08	Section 13 RPGO Act	Conviction
2.	158/08	Section 13 RPGO Act	Conviction
3.	453/08	Section 13 RPGO Act	Conviction
4.	539/08	Section 13 RPGO Act	Conviction
5.	225/11	Section 13 RPGO Act	Conviction
6.	437/11	Section 13 RPGO Act	Conviction
7.	94/12	Section 13 RPGO Act	Conviction
8.	245/12	Section 13 RPGO Act	Conviction
9.		Section 151 Cr.P.C	Bound
10.		Rajasthan Control of Goondas Act	Conviction
11.		Section 110 Cr.P.C.	Bound
12.	435/15	Section 283, 143; Section 8A National Highways Act	Pending Trial

1.2 S.B. Criminal Misc(Pet.) No. 1036/2012 has

preferred claiming the following reliefs:

"It is therefore, humbly prayed that this misc. petition may kindly be allowed; the order dated 6.3.2012 passed by the District Superintendent of Police, (6 of 32) [CRLMP-792/2016] Bikaner may kindly be quashed. Any other appropriate relief which this Hon'ble Court deems fit a necessary in the fact and circumstances of the present case may be granted in favour of the petitioner."

1.2.1 The details of cases registered against the petitioner in this petition are as under:

S.No.	FIR/Case No.	Offence(s)	Result
1.	81/1991	Sections 324, 336, & 337 IPC	F.R.
2.	25/1996	Sections 341 & 323 IPC	Acquittal

3. 109/1999 Sections Section 147, 452, 332, Conviction & 353 IPC

4. 74/2001 Sections 307, 323, 324, 382, Acquittal 447 & 34 IPC

5. 102/03 Sections 451, 307, 332, 352, Case Withdrawn 353, 323, 147, 148 149 IPC;

Section 3 PDPP Act

6. 51/04 Sections 341 and 323 IPC F.R.

7. 45/06 Sections 307, 452, 382, 427, Acquittal 323, 147, 148, & 149, IPC

8. 97/08 Sections 420 467, 468, 471, F.R. 454, 380, & 120-B IPC 9 135/09 Sections 323, 504, 353, & 34 Pending IPC

10. 16/12 Sections 457 and 380 IPC F.R.

11. 17/12 Sections 283, 143, & 380 IPC Pending 1.3 S.B. Criminal Misc(Pet.) No. 789/2014 has been preferred claiming the following reliefs:

"It is, therefore, prayed that miscellaneous petition may kindly be allowed and the history-sheet opened against the petitioner may kindly be quashed and set aside and all proceedings taken against the petitioner may kindly declared illegal and be quashed and set aside."

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[CRLMP-792/2016]

1.3.1 The details of cases registered against the petitioner in

this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	24/04	Sections 458, 307 & 323 IPC	Compromise
2.	7/06	Sections 147, 148, 149, 323, & 302 IPC	Pending Trial (tSj V³k;y)
3.	81/08	Section 3/25 Arms Act	Proceedings dropped 12.06.09, ACJM, Nagaur
4.	102/10	Sections 19/54, 54-A, 54-D, 56, Pending Trial (tSj V³k;y)	65, Rajasthan Excise Act, 1950
5.	103/10	Sections 420, 467, 468, 471, 472 & 120-B IPC	Acquittal
6.	104/10	Section 3/25 & 35 Arms Act	Acquittal
7.	105/12	Section 21/25 Arms Act	Negative Final Report
8.	106/12	Sections 147, 148, 149, 323, 307 & 364 IPC	Further Investigation Stop
9.	53/19	Sections 332, 353, 504, IPC; Sections 3(1)(r), (s), & 3 (2) (va) SC/ST Act.	F.R. (Case Pending)

1.4 S.B. Criminal Misc(Pet.) No. 2766/2014

has bee

preferred claiming the following reliefs:

"It is therefore prayed that criminal petition so filed under section 482 Cr.P.C. may kindly be allowed and the order dated 15.04.2005 Annex.1 passed by the Superintendent of Police, Udaipur may kindly be quashed and set aside and the respondents may kindly be directed to delete the name of the petitioner from the surveillance register as the Superintendent of Police, Udaipur has given sanction for the same because the same has been entered in violation of Rajasthan Habitual Offenders Act, 1953 and Rajasthan Police Rules, 1965.

(8 of 32) [CRLMP-792/2016] Any other order, which may kindly be deem, fit and proper may kindly be passed in favour of the petitioners."

1.4.1 The details of cases registered against the petitioner in this petition are as under:

S.No.	Case No./ Proceeding	Offence(s)	Result
1.	65/99	Sections 143, 149, & 323 IPC. Compromise	
2.	80/04	Sections 143, 447, & 323 IPC	Acquittal
3.	168/04	Section 451 & 323 IPC.	Acquittal

4.	175/04	Sections 147, 148, 149, 341, 323 IPC	Acquittal
5.	231/15	Section 341, 323, 504, & 34 IPC	Pending Trial
6.	30/18	Sections 341, 323, 504, & 34 IPC	Conviction
7.	58/19	Sections 143, 323, 325, 458, 459, 149 IPC	Stayed on Charge-Sheet by Hon'ble High Court (Pending)

1.5 S.B. Criminal Misc(Pet.) No. 41/2015 has been preferred claiming the following reliefs:

"It is, therefore, most humbly and respectfully prayed that this misc. petition may kindly be allowed and the impugned order dated 22.04.2015 may kindly be quashed and set aside and the respondents may kindly be directed to close the history sheet of the petitioner."

1.5.1 The details of cases registered against the petitioner in this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	176/96	Sections 452, 323, 353, 147 IPC.	Conviction
(9 of 32)			[CRLMP-792/2016]
2.	139/05	Sections 302, 460, 147, 148, 149 IPC	Acquittal
3.	112/06	Sections 341, 353, 332, 395 IPC; Section 3 PDPP Act; Section 3(10) of the SC/ST Act	Acquittal
4.	55/08	Sections 447, 323, 143, 504, 379 IPC	Conviction
5.	179/14	Sections 341, 323, 34 IPC	Acquittal
6.	217/14	Sections 420, 467, 468, 471, 120-B IPC	F.R. Accepted
7.	130/15	Sections 307, 336, 143 IPC; Section 27 Arms Act and; Section 3 PDPP Act	Acquittal
8.	131/15	Sections 307, 323, 427 IPC	Under Trial

1.6 S.B. Criminal Misc(Pet.) No. 2292/2016 has been

preferred claiming the following reliefs:

"It is, therefore, most humbly and respectfully prayed that this misc. petition may kindly be allowed and impugned order dated 09.06.2016 passed by Superintendent of Police, Churu may kindly be quashed and set aside."

1.6.1 The details of cases registered against the petitioner in this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	21/03	Sections 447, 149, 382, 341, 323, IPC	Compromise
2.	325/08	Sections 415, 143, 341, 323, 427 382 IPC	Conviction
3.	28/12	Sections 332, 353, 143 IPC; Section 3 (1) (10) SC/ST Act.	Pending Trial
4.	277/13	Sections 307, 143 IPC; Section 27 Arms Act	F.R. Accepted
5.	536/13	Sections 341, 323, 382, 427, 504, 34, IPC	Compromise
6.	49/12	Sections 384, 420, 197, 198,	F.R. Accepted

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7.	171/13	120-B IPC. Sections 307, 323, 143, 332, 353, 504, 379 IPC and Section 27 Arms Act	Compromise
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1.7 S.B. Criminal Misc(Pet.) No. 3834/2016

has bee

preferred claiming the following reliefs:

"It is, therefore, most respectfully prayed that this petition may kindly be allowed and the impugned letter/order dated 10.3.2016 (Annx.1) may kindly be quashed and set aside.

Any other order favorable to the petitioner may also be passed."

1.7.1 The details of cases registered against the petitioner in this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	211/03	Sections 279, 337 IPC	Conviction & fine
2.	83/06	Sections 341, 323, 34 IPC	Compromise

3.	133/09	Sections 147, 148, 149, 325, 323, 452, 427 IPC	Acquittal
4.	131/09	Sections 147, 148, 149, 353, 332 IPC	Conviction
5.	468/10	Sections 341, 323, 34 IPC	Compromise
6.	8/13	Sections 341, 323, 327, 34 IPC	Compromise
7.	83/15	Sections 143, 341, 323, 384 IPC	Pending trial
8.	47/19	Sections 384, 420, 406, 467, 468, 471, 120-B IPC	Pending trial
9.	156/16	Sections 307, 341, 323, 379 IPC	Pending trial
10.	3825/21 140/21	Sections 115 r/w 302, 120-B IPC	Pending trial
11.	FIR	Sections 341, 387 IPC	F.R.

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[CRLMP-792/2016]

1.8 S.B. Criminal Misc(Pet.) No. 698/2017 has bee

preferred claiming the following reliefs:

"It is, therefore, most humbly and respectfully prayed that this Misc. Petition may kindly be allowed and;

- i) The history sheet opened against the petitioner be quashed and set aside.
- ii) The name of petitioner, if entered in surveillance register be ordered to be omitted.
- iii) Any other appropriate relief which Hon'ble Court deems proper in favour of the petitioner may kindly be passed."

1.8.1 The details of cases registered against the petitioner in this petition are as under:

S.No. Prosecution Offence(s) Result Case No.

1. 77/02 Sections 452, 323, 325, 34 Compromise IPC
2. 331/04 Sections 341, 323, 34 IPC Compromise
3. 335/05 Sections 307, 323, 452, 147, Acquittal 148, 149, 324, 325 IPC

4. 180/05 Sections 458, 341, 323, 452, Compromise 34 IPC
5. 41/06 Sections 307, 323, 341, 34 Acquittal IPC
6. 186/06 Sections 365, 342, 323, 325, Acquittal 147, 148, 149 IPC
7. 200/07 Sections 332, 353 IPC; Pending trial (tSj Section 3 PDPP Act rtcht)
8. 186/09 Section 451 IPC Compromise
9. 90/12 Sections 451, 323, 143 IPC Compromise
10. 226/12 Sections 307, 323, 341, 147, Pending trial (tSj 148, 149 IPC; Section 27 rtcht) Arms Act
11. 150/2000 Sections 341, 323, 325 IPC Pending trial (tSj rtcht) (12 of 32) [CRLMP-792/2016]
12. 261/14 Sections 323, 341, 143 IPC F.R.
13. 246/12 Sections 307, 323, 341, 147, Pending trial (tSj 148, 149, 326, 324 IPC; rtcht) Section 27 Arms Act
14. 80/12 Section 3/25 Arms Act Pending trial (tSj rtcht)
15. 224/14 Sections 365, 120-B IPC Pending trial (tSj rtcht)
16. 223/14 Sections 387, 506, 120-B IPC Pending trial (tSj rtcht)
17. 114/18 Sections 448-A, 506-A, 382-A, Pending trial (tSj 387-A, 34 IPC rtcht)
18. 115/18 Sections 323, 341, 34 IPC Pending trial (tSj rtcht)
19. 199/22 Sections 384, 386, 420, 506, Pending 143 IPC investigation.
20. 208/21 Sections 153-A, 295-A, 295, Pending 143 IPC investigation.
21. 209/21 Sections 269, 270 IPC; Pending Section 4, 5 Rajasthan investigation.
Epidemic Diseases Act, 2020;
Section 51 Disaster Management Act, 2005.
22. 210/21 Sections 269, 270 IPC; Pending Section 4, 5 Rajasthan investigation.

Epidemic Diseases Act, 2020;

Section 51 Disaster Management Act, 2005.

1.9 S.B. Criminal Misc(Pet.) No. 711/2017 has been preferred claiming the following reliefs:

"It is, therefore, most humbly and respectfully prayed that this Misc. Petition may kindly be allowed and;

i) The history sheet opened against the petitioner be quashed and set aside.

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ii) The name of petitioner, if entered in surveillance register be ordered to be omitted.

iii) Any other appropriate relief which Hon'ble Court deems proper in favour of the petitioner may kindly be passed."

1.9.1 The details of cases registered against the petitioner in this petition are as under:

S.No. Prosecution Offence(s) Result Case No.

1. 331/04 Sections 341 323, 34 IPC Compromise

2. 41/06 Sections 307, 323, 341 34 IPC Acquittal

3. 200/07 Sections 332, 353 IPC; Pending trial (tSj Section 3 PDPP Act rtcht)

4. 90/12 Sections 451, 323, 143 IPC Compromise

5. 226/12 Sections 307, 323, 341, 147, Pending trial (tSj 148, 149 IPC; Section 27 rtcht) Arms Act

6. 138/12 Sections 366, 326, 385, 34 Pending trial (tSj IPC; Section 3/6 Indecent rtcht) Representation of Women (Prohibition) Act

7. 246/12 Sections 307, 323, 341, 147, Pending trial (tSj 148, 149, 326, 324 IPC; rtcht) Section 27 Arms Act

8. 139/13 Sections 458, 324, 325, 307, Pending trial (tSj 34 IPC rtcht)

9. 155/18 Sections 323, 341, 34 IPC Pending trial (tSj rtcht)

10. 199/22 Sections 384, 386, 420, 506, --

143 IPC 1.10 S.B. Criminal Misc(Pet.) No. 3303/2017 has been preferred claiming the following reliefs:

"It is, therefore, respectfully prayed that to avoid abuse, process of law and to secure ends of justice (14 of 32) [CRLMP-792/2016] Your Lordship may be pleased to allow this petition and be pleased to quash and set aside History-sheet and while closing the History-sheet respondents may kindly be directed to remove name and other details of petitioner from the History-sheet register of Police Station Sandwa, Churu shown on the website of Police Department and so also from the Surveillance Register of Police Station Sandwa, Churu "

1.10.1 The details of cases registered against the petitioner in this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	18/05	Sections 302, 341, 323, 325, 147, 148, 149 IPC	Acquittal
2.	86/07	Sections 341, 323, 325, 143 IPC	Compromise
3.	92/07	Sections 451, 323, 341, 147 IPC and Section 3(10) SC/ST Act	F.R. Accepted
4.	71/05	Sections 341, 323, 143 IPC	Offence not made out during the investigation
5.	98/03	Sections 341, 323, 34 IPC	Offence not made out during the investigation
6.	19/07	Sections 19/54 of Rajasthan Excise Act	Acquittal
7.	115/07	Sections 19/54 of Rajasthan Excise Act	Acquittal
8.	08/12	Sections 449, 452, 436, 354, 504 323, 380, 143, 120-B IPC	F.R. Accepted

1.11 S.B. Criminal Misc(Pet.) No. 3927/2017 has been preferred claiming the following reliefs:

"It is, therefore, respectfully prayed that this Misc. Petition may kindly be allowed and the name of petitioner be ordered to be deleted from the (15 of 32) [CRLMP-792/2016] surveillance register so been maintained by the respondents in accordance with order Dt. 19.04.2017 passed by the Superintendent of Police, Udaipur."

1.11.1 The details of cases registered against the petitioner in this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	674/10	Sections 307 IPC, Section	Acquittal

2.	207/10	3/25 and 4/25 of Arms Act Sections 147, 148, 149, 307 IPC and Section 3/25 of Arms Act	Acquittal
3.	83/11	Sections 341, 323, 307, 34 IPC	Acquittal
4.	253/12	Sections 147, 148, 341, 323, 427, 307, 149 IPC	Acquittal
5.	256/12	Sections 3/25 of Arms Act	Acquittal
6.	179/14	Sections 387, 504 IPC	Acquittal
7.	423/11	Sections 341, 323, 34 IPC	Compromise
8.	260/10	Sections 341, 323 IPC	Conviction & Fine
9.	159/12	Sections 458, 392, 384, 34 IPC	Acquittal
10.	75/19	Sections 376, 323, 498A IPC	Pending trial (tSj rtcht)

1.12 S.B. Criminal Misc(Pet.) No. 4016/2017 has been preferred claiming the following reliefs:

"It is, therefore, respectfully prayed that your Lordships may graciously be pleased to accept and allow the present criminal misc. petition and impugned order dated 20.01.2017 (Annex.1) passed by the Superintendent of Police, Bikaner, directing opening the history sheet of the petitioner, may kindly be quashed and set aside."

1.12.1 The details of cases registered against the petitioner in this petition are as under:

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[CRLMP-792/2016]

S.No.	Case No.	Offence(s)	Result
1.	143/08	Sections 323, 325, 341, 427, 34 IPC	Pending before the concerned court.
2.	81/10	Sections 341, 323, 447, 147, 148, 149 IPC	Acquittal for want of evidence
3.	27/11	Sections 447, 379 IPC	FR
4.	27/12	Sections 307, 323, 341, 448, 147, 148, 149 IPC	Pending before the concerned court.
5.	94/12	Sections 427, 447, 147, 148, 149 IPC	Pending before the concerned court.
6.	95/12	Sections 427, 447, 147, 148, 149 IPC	Pending before the concerned court.
7.	96/12	Sections 427, 447, 147, 148, 149 IPC	Pending before the concerned court.
8.	97/12	Sections 427, 447, 147, 148, 149 IPC	Pending before the concerned court.
9.	99/12	Sections 427, 447, 147, 148, 149 IPC	Pending before the concerned court.
10.	100/12	Sections 427, 447, 147, 148, 149 IPC	Pending before the concerned court.

11.	101/12	Sections 427, 447, 147, 148, 149 IPC	Pending before the concerned court.
12.	188/12	Sections 447, 143 IPC	Pending before the concerned court (negative FR submitted).

1.13 S.B. Criminal Misc(Pet.) No. 4022/2017 has been

preferred claiming the following reliefs:

"It is, therefore, respectfully and humbly prayed that this Misc. Petition may kindly be allowed and order impugned dated 4.5.2017 issued by the respondent No.2 and proceedings thereof initiated by the respondent No.3 in pursuance of order impugned may kindly be quashed and set aside in the interest of justice."

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[CRLMP-792/2016]

1.13.1 The details of cases registered against the

petitioner in this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	44/09	Sections 323, 341, 427 IPC	Compromise
2.	43/09	Sections 307, 392 IPC and Section 3/25 of Arms Act	Acquittal
3.	329/10	Sections 341, 323, 143, 379 IPC	Compromise
4.	15/11	Sections 323, 341 IPC	Compromise
5.	151/12	Sections 353, 332 IPC.	Pending Trial (tSj V ^a k;y)
6.	92/12	Sections 307, 323, 447, 34 IPC	Compromise
7.	108/14	Sections 143, 336, 279 IPC	Acquittal
8.	41/17	Sections 147, 149, 458, 323, 342, 354, 366 and 120-B IPC	Pending Trial (tSj V ^a k;y)
9.	87/18	Sections 147, 148, 452, 384, 365/511 IPC	Acquittal
10.	85/18	Sections 4/25 of Arms Act	Pending Trial (tSj V ^a k;y)
11.	40/19	Sections 143, 341, 379 IPC	Pending Trial (tSj V ^a k;y)
12.	32/21	Sections 341, 323/34 IPC and	Pending Trial (tSj

Section 3(1)(r)(s) 2(va) SC/ST V^ak;y) Act 1.14 S.B. Criminal Misc(Pet.) No. 4581/2018 has been preferred claiming the following reliefs:

"It is, therefore, most humbly and respectfully prayed that the present criminal misc. pet. may kindly be allowed and respondents may very kindly be directed to Delete/remove the name of the petitioner from the surveillance register no.8 forthwith the may also be directed delete/remove photograph of the petitioner from their website immediately."

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[CRLMP-792/2016]

1.14.1 The details of cases registered against t

petitioner in this petition are as under:

S.No.	Case No.	Offence(s)	Result
1.	13/2000	Sections 341, 323 IPC and Section 3 SC/ST Act	Acquittal
2.	10/05	Sections 323, 341, 427, 34 IPC	Compromise
3.	111/05	Sections 379, 34 and 120-B IPC	Acquittal
4.	112/05	Sections 393, 307, 34 IPC and Section 27 of Arms Act	Acquittal
5.	122/05	Sections 3/25 of Arms Act	Acquittal
6.	224/15	Sections 323, 341, 34 IPC	Pending trial (tSj rtcht)

2. Learned counsel for petitioner submitted that t

Superintendent of Police has not followed the procedure provided in the Rajasthan Police Rules, 1958; Rule 4.4 thereof provides for the procedure for maintaining the surveillance register as well as maintaining record of the person, who was convicted twice and more than twice; Rule 4.9 thereof clearly provides that a history sheet may be opened by, or under the written orders of, a police officer not below the rank of Inspector for any person not entered in the surveillance register who is reasonably believed to be habitually addicted to crime or to be an aider or abettor; and therefore the petitioners do not fall under this category.

3. Learned counsel for the petitioners also submitted that as per the definition of the term "habitual offender" contained in the Habitual Offenders Act, 1953, "habitual offender" means a person who, during any continuous period of five years, whether before or after the 15th day of September, 1952 or partly before and partly (19 of 32) [CRLMP-792/2016] after the said day, has been sentenced on conviction on not less

than three occasion since he attained the age of eighteen years to a substantive term of imprisonment for any one or more of the scheduled offences committed on different occasions and not so connected together as to form parts of the same transaction, such sentence not having been reversed in appeal or revision. The proviso added under the said definition says that, in computing the continuous period of five years referred to above any period spent in jail either under a sentence of imprisonment or under detention shall not be taken into account.

4. Learned counsel for petitioners further submitted that none of the act of the petitioners satisfies the essential ingredients of the habitual offenders, as provided under the Habitual Offenders Act, 1953, so as to constitute the offence under the said provision of law, since as per the said provision the person is required to be convicted, on least three occasions. In support of such submission, learned counsel placed reliance on the judgment of rendered by this Court in the case of Diwan Singh Vs. State And Ors. (S.B. Criminal Misc. Petition No. 1305/2016 decided on 19.09.2022).

Relevant portion of which reads as under: -

"4. Learned Senior Counsel further submitted that the petitioner does not come within the definition of 'habitual offender', as provided under Section 2 sub- section (1) (a) of the Rajasthan Habitual Offenders Act, 1953.

5. Learned Senior Counsel also submitted that looking into the overall facts and circumstances, it is clear that the petitioner does not fall under the purview (20 of 32) [CRLMP-792/2016] of the Rule 4.9 of the Rajasthan Police Rules, 1965. Reference was also made to Rules 4.4 and 8.22 of the said Rules.

For the sake of brevity, the relevant provisions of law, referred to hereinabove, are reproduced hereinunder:- Rajasthan Police Rules, 1965 4.4 Surveillance Register No.,8. -

(1) In every police station, other than those of the railway police, a Surveillance Register shall be maintained in form 4.4(1).

(2) In part I of such register shall be entered the names of persons commonly resident within or commonly frequenting the local jurisdiction of the police station concerned, who belong to one or more of the following classes:

(a) All persons who have been proclaimed under section 87, Code of Criminal Procedure.

(b) All released convicts in regard to whom. an order under section 565, Criminal Procedure Code, has been made.

(c) All convicts the execution of whose sentence as suspended in the whole, or any part of whose punishment has been remitted conditionally under section 401, Criminal Procedure Code.

(d) All persons restricted under Rules of Government mode under section 8 of the Rajasthan Habitual Offenders Act, 1953.

(3) In part II of such register may be entered at the discretion of the Superintendent:
-

(4) Persons who have been convicted twice, or more than twice, of offences mentioned in rule 8.22;

(b) persons who are reasonably believed to be habitual offenders or receivers of stolen property whether they have been convicted or not;

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(c) persons under security under sections 109 or 110, code of Criminal Procedure;

(d) convicts released before the expiration of their sentences under the Prisons Act and Remission Rules without imposition of any conditions.

Note:- This rule must be strictly construed, and entries must be confined to the names of persons falling in the four classes named therein. 4.9 History sheets when opened. -

(1) A history sheet, if one does not already exist, shall be opened in Form 4.9 for every person whose name is entered in the surveillance register, except conditionally released convicts.

(2) A history sheet may be opened by, or under the written orders of, a police officer not below the rank of Inspector for any person not entered in the surveillance registered who is reasonably believed to be habitually addicted to crime or to be an aider or abettor such persons.

(3) the Government Railway Police will maintain the history sheets of criminals known or suspected to operate on the railway in accordance with Police Rule 4.8. They will open history sheets themselves for criminals living in railway premises. who have been absent from their original homes so long that the railway premises may be regarded as their permanent residence. They may also open history sheets for wandering strangers reasonably believed to be habitually addicted to crime on the railway, whose original homes cannot be traced.

8.22 Record of conviction Conviction and orders to execute bonds in all cognizable police cases shall be entered in (a) the Crime Register which is maintained in the office of the Circle Officer, and (b) in the First Information Report Register which is maintained at the police station reporting the offence. Convictions and orders in the (22 of 32) [CRLMP-792/2016] cases detailed below shall also be entered in (c) the Conviction Register which, for the purpose of section 75, Indian Penal Code, is maintained in each police station as prescribed in Chapter IV.

Habitual Offenders Act, 1953 Section 2. Interpretation -

(1) In this Act, unless the subject or context requires otherwise,-

[(a) 'habitual offender' means a person who, during any continuous period of five years, whether before or after the 15th day of September, 1952 or partly before and partly after the said day, has been sentenced on conviction on not less than three occasion since he attained the age of eighteen years to a substantive term of imprisonment for any one or more of the scheduled offences committed on different occasions and not so connected together as to form parts of the same transaction, such sentence not having been reversed in appeal or revision;

Provided that in computing the continuous period of five years referred to above any period spent in jail either under a sentence of imprisonment or under detention shall not be taken into account;']

(b) 'prescribed' shall mean prescribed by or under this Act.

(c) 'corrective settlement' means any place established, approved or certified as a corrective settlement under section 7;

(d) 'registered offender' means a habitual offender registered or re-registered under this Act;

(e) 'scheduled offence' means an offence specified in the schedule or an offence analogous thereto.

6. Learned Senior Counsel, in support of his submissions, placed reliance on the judgments rendered by this Hon'ble Court in the cases of Ramgopal Jain v. The State of Rajasthan and Ors.

(23 of 32) [CRLMP-792/2016] (S.B. Criminal Misc. (Pet.) No. 3916/2012, decided by a Coordinate Bench of this Hon'ble Court at Jaipur Bench on 04.04.2013) and Gaji Khan v. State of Rajasthan and Anr. (S.B. Criminal Misc. (Pet.) No.4602/2017, decided by this Court on 01.11.2018). Special emphasis was placed on the judgment rendered in the case of Ramgopal Jain (supra) and it was submitted that the definition of 'habitual offender', has been discussed and analyzed in the said judgment, and that the present petitioner does not fall within the ambit of its definition.

18. This Court observes that the contention made on behalf of the State that the two cases against the petitioner were closed on the basis of compromise and that he was acquitted in another on the basis of reasonable doubt, by a bare reading of the Rules of 1965, cannot be said to fall under its purview, and therefore cannot be viewed in an adverse manner to the disadvantage of the petitioner,

as contended by the learned Public Prosecutor.

19. This Court further observes that in Case No. 83/07.09.1993, as already discussed hereinabove, it is admitted that the petitioner was granted the benefit under the Probation of Offenders Act, 1958. It was however contended on behalf of the petitioner that the said case has been incorrectly included in the list of cases registered against him averring that he was not named in the F.I.R. impugned therein nor in the chargesheet impugned therein, copies of the same being at Annexure-3; however, the same was not ascertainable from the record, and a perusal of Annexure-3 reveals a letter written by the petitioner to the concerned Police authorities. However, Section 12 of the Act of 1958 would operate in his favour, and the same shall not be a disqualification attached to his conviction. Thus, what remains to be seen is whether the other two convictions of the petitioner would fall within the ambit of the Rules of 1965.

(24 of 32) [CRLMP-792/2016] For the sake of brevity, the Section aforementioned is reproduced hereinunder:-

12. Removal of disqualification attaching to conviction.--Notwithstanding anything contained in any other law, a person found guilty of an offence and dealt with under the provisions of section 3 or section 4 shall not suffer disqualification, if any, attaching to a conviction of an offence under such law: Provided that nothing in this section shall apply to a person who, after his release under section 4 is subsequently sentenced for the original offence.

20. This Court also observes that, as contended on behalf of the petitioner that Case No. 85 of 2003, wherein the petitioner was convicted for the offences under Sections 447, 323, 147, 148, and 504 I.P.C. and Section 3 of the S.C./S.T. (Prevention of Atrocities) Act, 1989 would not fall under Rule 8.22 of the Rajasthan Police Rules, 1965, is without any substance.

21. This Court however, observes that the requirements under Rule 4.4 Sub Rule (4) requires four criteria to be met for a person's name to be entered into the surveillance register. The second criterion requires that the person whose name so sought to be entered into the surveillance register be reasonably believed to be habitual offenders, is not fulfilled in the present case.

22. This Court arrives at the said conclusion, while drawing strength from the judgment rendered in Ramgopal Jain (supra), as well as the other judgments cited by the learned Senior Counsel for the petitioner, and the fact that the last conviction of the petitioner was in the year 2003; while the last case registered against him was in the year 2007, wherein he was acquitted. The cases as cited on behalf of the State, being Dhanji Ram (supra), wherein in the special factual matrix therein, the Hon'ble Court did not interfere; and in Malak Singh (supra), the Hon'ble (25 of 32) [CRLMP-792/2016] Court observing that while the act of entering a name in the surveillance register is purely an administrative function, when the matter comes before the Court, the concerned police authorities ought to satisfy the Court regarding the reasonableness of such function. In the present case, such justification was not placed before this Court on behalf of the respondent-police authorities.

23. This Court therefore, observes that there are no reasonable grounds available to believe that the petitioner, who is a senior citizen, could be a habitual offender.

24. This Court, in light of the aforesaid observations and the peculiar factual matrix of the present case, partly allows the present petition, and accordingly, respondents no.2, 3, 4, & 5 are directed to strike out the name of the petitioner from the history-sheet maintained at the concerned police station and the order dated 27.03.2006 passed by Superintendent of Police, Bikaner alongwith entire consequential proceedings pursuant thereto is quashed and set aside. All pending applications stand disposed of." 4.1. He further placed reliance on the judgment of rendered by a Coordinate Bench of this Hon'ble Court in the case of Pankaj Charan Vs. State Rajasthan And Ors. (S.B. Criminal Misc. Petition No. 2975/2014 decided on 13.01.2015).

"As per the definition of the 'habitual offender', provided under the Act of 1953, a person can be declared as habitual offender, if he has three convictions recorded against him. In the present case, single conviction has been recorded against the petitioner, however, in all other cases, he was acquitted by the competent criminal court, therefore, he does not fall within the definition of word "habitual offender".

(26 of 32) [CRLMP-792/2016] Looking to the above facts and circumstances, it is clear that the petitioner does not falls within the definition of 'habitual offender' under the Act of 1953 and it can be held that the existence of the name of petitioner in the history-sheet/Surveillance Register is illegal.

Hence, this criminal misc. petition is allowed the Superintendent of Police, Barmer as well as SHO, Police Station, Kotwali, District Barmer are directed to remove the name of the petitioner from the history- sheet/Surveillance Register of the Police Station, Kotwali, District Barmer."

5. On the other hand, learned GA-cum- AAG Mr. MA Siddiqui assisted by Mr. AR Malkani opposed the aforesaid submissions made on behalf of the petitioners and submitted that the petitioners were declared as the history sheeter, which is valid in eye of the law and the concerned Superintendent of Police came to such conclusion, after duly looking into the overall facts and circumstances of the present case and the material available before him.

6. Learned GA-cum- AAG Mr. MA Siddiqui assisted by Mr. AR Malkani further submitted that the as per rule 4.4 of the Rajasthan Police Rules, 1965 a person name to be entered in the second part of the surveillance register at the discretion of the Superintendent of Police, if the person is habitual offender, or receiver of stolen property whether the he has been convicted or not.

7. Heard learned counsel for both parties as well as perused the record of the case, alongwith the judgments cited at the Bar.

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8. This Court finds the aforementioned brief background of the cases, were reproduced hereinabove, pursuant to the necessary details having been furnished by the GA-cum-AAG, and the same reveals that :

8.1. In S.B. Criminal Misc. Petition No. 792/2016, total 12 cases were registered against the petitioner, he was convicted in 9 of them, 2 were closed on the basis of bound down, while 1 case is pending trial.

8.2. In S.B. Criminal Misc. Petition No. 1036/2012, total 11 cases were registered against the petitioner. He was acquitted in 3 of them; convicted in one of them and; a negative Final Report was presented in 4 of them, while as regards one case, the prosecution withdraw the same; two cases are pending trial.

8.3. In S.B. Criminal Misc. Petition No. 789/2014, total 9 cases were registered against the petitioner. He was an acquitted in 2 of them; a negative Final Report was presented in 2 of them, while 1 case was closed on the basis of compromise; in one of the cases further proceedings were stopped; two cases are pending trial;

while in one of the cases, proceedings were dropped. 8.4. In S.B. Criminal Misc. Petition No. 2766/2014, total 7 cases were registered against the petitioner. He was an acquitted in 3 of them, 1 case was closed on the basis of compromise; convicted in one of the cases, while two cases are pending trial. 8.5. In S.B. Criminal Misc. Petition No. 41/2015, total 8 cases were registered against the petitioner. He was acquitted in 4 of (28 of 32) [CRLMP-792/2016] them; a negative Final Report was presented in one of the cases; convicted in 2 cases while one case is pending trial. 8.6. In S.B. Criminal Misc. Petition No. 2292/2016, total 7 cases were registered against the petitioner; convicted in one of the cases; a negative Final Report was presented in 2 of them, 3 cases were closed on the basis of compromise, while one case is pending trial.

8.7. In S.B. Criminal Misc. Petition No. 3834/2016, total 11 cases were registered against the petitioner; convicted in 2 of them, a negative Final Report was presented in one of the cases; acquitted in 1 of them, 3 cases were closed on the basis of compromise, while four cases are pending trial.

8.8. In S.B. Criminal Misc. Petition No. 698/2017, total 22 cases were registered against the petitioner; acquitted in 3 of them, a negative Final Report was presented in one of the cases, 5 cases were closed on the basis of compromise, while 13 cases are pending trial.

8.9. In S.B. Criminal Misc. Petition No. 711/2017, total 10 cases were registered against the petitioner; acquitted in 1 of them, 2 cases were closed on the basis of compromise, while seven cases are pending trial.

8.10. In S.B. Criminal Misc. Petition No. 3303/2017, total 8 cases were registered against the petitioner; acquitted in 3 of them, a negative Final Report was presented in 2 of them, 1 case was closed on the basis of compromise. No offence has been found to be made out in two of the cases,

after investigation.

(29 of 32) [CRLMP-792/2016] 8.11. In S.B. Criminal Misc. Petition No. 3927/2017, total 10 cases were registered against the petitioner; acquitted in 7 of them, 1 case was closed on the basis of compromise, convicted in one case, while one case is pending trial. 8.12. In S.B. Criminal Misc. Petition No. 4016/2017, total 12 cases were registered against the petitioner; out of which, 10 cases are pending with the concerned court; in one case, negative Final Report was presented, while in one case, the petitioner was acquitted for want of evidence.

8.13. In S.B. Criminal Misc. Petition No. 4022/2017, total 12 cases were registered against the petitioner; acquitted in 3 of them, 4 cases were closed on the basis of compromise, while 5 cases are pending trial.

8.14. In S.B. Criminal Misc. Petition No. 458/2018, total 6 cases were registered against the petitioner; acquitted in 4 of them, 1 case was closed on the basis of compromise, while one case is pending trial.

9. While considering Rules 4.4 and 4.9 of the Rajasthan Police Rules, 1965 as well as the judgment cited, this Court observes that for sustaining a history-sheet against a person, either a person has to have three cases of convictions which would bring him within the domain of the definition of "Habitual Offender" so that he could be declared as a history-sheeter, by entering his name in the surveillance register, or as per Rule 4.9 of the Rajasthan Police Rules, 1965, it is also stated that anything reasonable could be the criteria for determination of entering a (30 of 32) [CRLMP-792/2016] person's name in the surveillance register, as per his being habitual to commit crime.

9.1 For the sake of brevity, this Court arrives at the following uniform criteria to determine whether an entry of a person's name in the surveillance register is justified:

(a) A person having three consecutive convictions against him, and being a habitual offender, shall be liable for continuance of entry of his name in the surveillance register, while declaring him as a history-sheeter; however, if the convictions are 15 years or before, then the history sheet/entry of his name in the surveillance register will not fall in this criteria of sustenance.

OR

(b) If a person is having more than ten cases against him, in totality, irrespective of the result, his name, at the discretion of the concerned authority, entered in the surveillance register, while declaring him as a history-sheeter, is justified and deserves continuance; but if a person is having more than ten cases and all of them are 10 years old, then the history sheet/entry of his name in the surveillance register, will not fall in this criteria of sustenance.

9.2 As an upshot of the above, this Court observes that a history-sheet shall be amenable to judicial scrutiny as above, and thus, while keeping into consideration Rule 4.4 and Rule 4.9 of the Rajasthan Police Rules, 1965 and the precedent law, this Court is of the opinion that the entry of a person's name in the surveillance register/history sheet, on count of his being a habitual offender, (31 of 32) [CRLMP-792/2016] shall not be interfered with, if there are three consecutive convictions against such person, or such an entry in the history sheet/surveillance register shall not be interfered with, if a person is having more than 10 cases, in totality, against him, irrespective of the result. (The condition of 10 cases shall not apply, if there are no cases in last 10 years; similarly, if the convictions are 15 years or before, then again the exclusion of the person's name from the history sheet/surveillance register shall be warranted). 9.3 This Court thus observes that if a person suffers from any of the above disqualifications, then he shall be disentitled from claiming relief against being declared as a history-sheeter. It is relevant to note that in Diwan Singh (supra), while granting relief to the petitioner therein, it was observed that the petitioner therein was a senior citizen against whom the last conviction was in the year 2003, and the last case registered against him was in the year 2007, while his case had come up for final adjudication in the year 2022.

9.4 This Court, thus, in view of the aforementioned uniform criteria, allows the instant S.B. Criminal Misc. Petitions No. 1036/2012, 2766/2014, 789/2014, 41/2015, 2292/2016, 711/2017, 3303/2017, 3927/2017, 4016/2017 and 4581/2018; accordingly, the respondents are directed to strike out the name of the petitioners in the said petitions from the history-sheet maintained at the concerned police station while quashing the impugned orders passed by the concerned Superintendent of Police alongwith entire proceedings pursuant thereto are quashed. However, S.B. Criminal Misc. Petitions (32 of 32) [CRLMP-792/2016] No.792/2016, 3834/2016, 698/2017 and 4022/2017, are dismissed. All pending applications stand disposed of.

(DR.PUSHPENDRA SINGH BHATI), J.

SKant/-

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